



## CHAPTER 65.

An Act to provide for relief from rates in respect of air-raid protection works. [29th July 1938.] A.D. 1938. —

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) In ascertaining under the principal Act the value for rating purposes of a hereditament, no regard shall be had—

Relief of  
air-raid pro-  
tection  
works from  
rates.

(a) to any room or other part of the hereditament which has been added at any time after the hereditament was first assessed, or was included in the hereditament before it was first assessed, solely for the purpose of affording protection in the event of hostile attack from the air, and which is not occupied or used for any other purpose;

(b) to any structural alterations or improvements to the hereditament (not being the addition of any such room or other part as aforesaid) made at any time after the hereditament was first assessed, solely for the purpose of affording such protection as aforesaid.

(2) No person shall, in respect of any period, be liable to pay rates in respect of a hereditament which is intended to be occupied and used solely for the purpose

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(*Air-Raid Works*) Act, 1938.

A.D. 1938. — of affording such protection as aforesaid, and which is not occupied or used for any other purpose, or be deemed to be in occupation thereof for rating purposes, and notwithstanding anything in the principal Act no such hereditament shall be included in any rate made in respect of any period.

(3) The fact of any such room or other part of a hereditament as is referred to in paragraph (a) of subsection (1) of this section, or of any such hereditament as is referred to in the last foregoing subsection, having been occupied or used for any purpose other than that of affording such protection as aforesaid, shall, as respects a hereditament in the administrative county of London, for the purposes of section forty-seven of the principal Act, be a ground for making and sending to the assessment committee a provisional list and for making a requisition for such a list to be made and sent.

(4) In this Act, the expression " the principal Act " means—

15 & 16  
Geo. 5. c. 90. (a) in relation to places outside the administrative county of London, the Rating and Valuation Act, 1925, as amended by any subsequent enactment; and

32 & 33 Vict.  
c. 67. (b) in relation to the administrative county of London, the Valuation (Metropolis) Act, 1869, as amended by any subsequent enactment.

Citation  
and con-  
struction. 2.—(1) This Act may be cited as the Rating and Valuation (*Air-Raid Works*) Act, 1938.

(2) The Rating and Valuation Acts, 1925 to 1938, and this Act shall be construed as one, and this Act shall be included amongst the Acts which may be cited together as the Rating and Valuation Acts, 1925 to 1938.

(3) The Rating and Valuation (Metropolis) Acts, 1869 to 1930, and this Act shall be construed as one, and may be cited together as the Rating and Valuation (Metropolis) Acts, 1869 to 1938.

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Printed by EYRE AND SPOTTISWOODE LIMITED\*

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